

THE MEN ACCUSED IN MY LAI "MASSACRE"

The name of a remote village in Vietnam has become a symbol for a tragic aspect of war. How are the wheels of justice turning in this case?

Attention has again been focused on the grim day nearly three years ago when a mass killing of men, women and children took place at the village of My Lai in South Vietnam.

The latest major development:

Lt. William L. Calley, Jr., who is charged with the premeditated murder of 102 civilians, took the stand at his court-martial at Fort Benning, Ga. He admitted directing and participating in the execution of Vietnamese civilians in one section of My Lai, but testified that he had been taught to regard them as the enemy. Explaining the killings, he said: "That was my order, sir—that was the order of the day."

Lieutenant Calley was the first officer connected with the tragedy to tell his story in open court.

Where cases stand. After months of Army investigation and hearings, this is the status of those alleged to have been involved in the killings or to have concealed evidence of them:

- Officers and enlisted men originally charged—25.
- Acquitted by courts-martial—2, both enlisted men.
- Men against whom charges were dropped—19.
- Cases not yet settled—4.

In addition to Lieutenant Calley, those still in legal jeopardy are:

Col. Oran K. Henderson of Indianapolis. The Army announced on February 26 that he will be tried on charges of attempting to cover up the killings.

Capt. Eugene M. Kotouc of Fort Omaha, Nebr., who is to be tried on charges of maiming and assault.

Capt. Ernest L. Medina of Pico Rivera, Calif. The Army is investigating to see if he should be tried on a murder charge placed against him earlier.

Charges of a cover-up brought against Maj. Gen. Samuel W. Koster—the highest-ranking officer accused—have been



—UPI Photo

Lieutenant Calley—He said of actions at My Lai: "I do not feel I was wrong."

dismissed. However, his case and others are still being reviewed for possible administrative action. The investigations are the Army's equivalent of a grand-jury inquiry into whether the available evidence warrants prosecution.

What happened. On March 16, 1968, a platoon from "Charlie" Com-



—Wide World Photo

Captain Medina—One of four officers still in legal jeopardy over My Lai.

pany, part of a task force from the Eleventh Brigade of the Americal Division, swept through the hamlet of My Lai in Quang Ngai Province. General Koster was the division commander at the time.

The task force was commanded by Lt. Col. Frank A. Barker, Jr., who died two months later in the crash of a helicopter.

The My Lai area was a complex of villages which reportedly provided a base of operations for the Viet Cong's 48th Battalion. The mission of Task Force Barker was to end the Americal Division's troubles with the 48th once and for all.

Before the ground assault, the area was subjected to artillery fire and hit by rockets and machine guns mounted aboard helicopters.

Under the "rules of engagement" then in force, My Lai was a "free fire" zone: That is, anyone moving in the area could be brought under fire.

When the task force withdrew, according to eyewitnesses, My Lai was littered with dead. Some accounts have placed the number at more than 300.

The four officers still legally involved in the My Lai incident held these posts at the time: Lieutenant Calley was a platoon commander, Captain Medina commanded "Charlie" Company, Colonel Henderson commanded the Eleventh Brigade, and Captain Kotouc was the intelligence officer for the task force.

A general implicated. The charges against General Koster, now dismissed, were that he attempted to conceal the tragedy from higher headquarters.

At the time the charges were brought, General Koster was superintendent at the U.S. Military Academy at West Point. He resigned that post.

No Army general has been tried by a general court-martial since 1952, when Maj. Gen. Robert W. Grow was convicted of illegally recording classified information in a personal diary. He was reprimanded and suspended from command for six months—a sentence remitted in 1957 by President Eisenhower.

The Calley trial. Lieutenant Calley, if convicted, could face a death sentence. In his testimony, he gave this view of the mission he was ordered to carry out at My Lai:

"We were going in there to do sustained battle with the enemy. . . . We would keep contact with the enemy as long as we could and try to roll him up. . . ."

"I was ordered to go in there and destroy the enemy. That was my job that day. That was my mission. . . . I felt then and I still do that I acted as I was directed and that I carried out orders I was given. And I do not feel I was wrong in doing so."

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